CYNTHIA G. LAWRENCE (SBN 148927)
BRYAN L. MALONE (SBN 144082)
BLAZE VAN DINE (SBN 251946)
SIMS, LAWRENCE & BROGHAMMER
1478 Stone Point Drive, Suite 450
Roseville, CA 95661
Telephone: (916) 797-8881
Facsimile: (916) 253-1544
Email: cynthia@sims-law.net
bryan@sims-law.net
blaze@sims-law.net
SLB@sims-law.net

Attorneys for Defendant
KATIE PALACIOS and
HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION (sued and served as The Hope Program)

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. KATIE PALACIOS, Clinical Director, HOPE Program (Stockton, California), an individual; HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation; and DOES 1-10, inclusive, Defendants.	Case No.: STK-CV-UF-2026-0001032 **DEFENDANT KATIE PALACIOS' RESPONSES TO PLAINTIFF'S FIRST SET OF FORM INTERROGATORIES** Complaint Filed: February 10, 2026 Trial Date: TBD

PROPOUNDING PARTY: Plaintiff BRENDAN NGEHSI NEWANFORBI

RESPONDING PARTY: Defendant KATIE PALACIOS

SET NO: ONE

Defendant KATIE PALACIOS ("PALACIOS" or "Defendant" or "Responding Party") hereby objects and responds to Plaintiff BRENDAN NGEHSI NEWANFORBI's ("Propounding Party") First Set of Form Interrogatories, as follows:

PRELIMINARY STATEMENT

The following responses are made solely for the purpose of this pending action. Documents eventually produced in response to the Interrogatories and any individual request therein, are subject to admissibility, as well as to any and all other objections on any grounds that would require the exclusion of any statement therein if the information were introduced in court. All objections and grounds for such objections are expressly reserved and may be interposed at the time of any motion or trial.

These responses are based on discovery available as of the date hereof. Discovery is continuing, and these responses are accordingly subject to revision. Further discovery, independent investigation, and analysis may supply additional facts and add meaning to known facts, as well as establish entirely new factual conclusions and legal contentions, all of which may lead to additions, changes to, or variations from the information set forth herein. These responses are given without prejudice to Defendant's right to produce, respond, or rely on subsequently discovered information, facts, or documents. Defendant accordingly reserves the right to change the response herein as additional facts are ascertained, analysis is made, legal research is completed, and contentions are made. The responses contained herein are made in a good faith effort to comply with the provisions of the California Rules of Civil Procedure but are in no way deemed to prejudice Defendant with respect to further discovery, research, and analysis.

GENERAL OBJECTIONS

1. Respondent objects to the Interrogatories to the extent that they seek information that is protected from disclosure by the attorney-client privilege, the attorney work product doctrine or any other recognized privilege.

2. Respondent objects to the Interrogatories to the extent that they require Respondent to search for and produce documents or information that are not within its possession, custody, or control.

3. Respondent objects to the Interrogatories to the extent they seek information or documents that cannot be located by Respondent after reasonably diligent inquiry, are readily available from public sources, or are available to Plaintiff's counsel from another source or by other

means that are more convenient, more appropriate, less burdensome, or less expensive.

4. Respondent objects to the Interrogatories to the extent they seek legal conclusions and/or would require Respondent to reach a legal conclusion in order to prepare a response.

5. Respondent objects to the Interrogatories to the extent they are argumentative, prejudicial, improper, incorrect, vague, and/or ambiguous.

6. Respondent objects to the Definitions to the extent that certain Definitions imply legal conclusions.

RESPONSES TO FORM INTERROGATORIES, SET ONE

FORM INTERROGATORY NO. 1.1:

State the name, **ADDRESS**, telephone number, and relationship to you of each **PERSON** who prepared or assisted in the preparation of the responses to these interrogatories. (Do not identify anyone who simply typed or reproduced the responses.)

RESPONSE TO FORM INTERROGATORY NO. 1.1:

Attorney Cynthia G. Lawrence, Sims, Lawrence & Broghammer, 1478 Stone Point Drive, Suite 450, Roseville, CA 95661; (916) 797-8881, counsel for defendant Hope Program, A Licensed Clinical Social Worker Professional Corporation who may be contacted through counsel.

FORM INTERROGATORY NO. 2.1:

State:

a. your name;

b. every name you have used in the past; and

c. the dates you used each name.

RESPONSE TO FORM INTERROGATORY NO. 2.1:

a. Katie Palacios.

b. Katherine or Kathy Palacios.

c. Various times over the course of my life.

FORM INTERROGATORY NO. 2.2:

State the date and place of your birth.

///

RESPONSE TO FORM INTERROGATORY NO. 2.2:

February 16, 1961, San Francisco.

FORM INTERROGATORY NO. 2.3:

At the time of the **INCIDENT**, did you have a driver's license? If so state:

a. the state or other issuing entity;

b. the license number and type;

c. the date of issuance; and

d. all restrictions.

RESPONSE TO FORM INTERROGATORY NO. 2.3:

Objection. This interrogatory is vague and ambiguous as to the term "INCIDENT." This answering defendant further objects that this interrogatory is overbroad, burdensome and not likely to lead to the discovery of admissible evidence. Additionally, this interrogatory contains subparts, or a compound, conjunctive, or disjunctive question in violation of CCP section 2030.060(f). Responding Party objects that this request violates the right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844.

Without waiving said objection, this answering defendant responds as follows: Yes.

FORM INTERROGATORY NO. 2.4:

At the time of the **INCIDENT**, did you have any other permit or license for the operation of a motor vehicle? If so, state:

a. the state or other issuing entity;

b. the license number and type;

c. the date of issuance; and

d. all restrictions.

RESPONSE TO FORM INTERROGATORY NO. 2.4:

Objection. This interrogatory is vague and ambiguous as to the term "INCIDENT." This answering defendant further objects that this interrogatory is overbroad, burdensome and not likely to lead to the discovery of admissible evidence. Additionally, this interrogatory contains subparts, or

a compound, conjunctive, or disjunctive question in violation of CCP section 2030.060(f).

Without waiving said objection, this answering defendant responds as follows: Yes, issued in California.

FORM INTERROGATORY NO. 2.5:

State:

a. your present residence **ADDRESS**;

b. your residence **ADDRESSES** for the past five years; and

c. the dates you lived at each **ADDRESSES**.

RESPONSE TO FORM INTERROGATORY NO. 2.5:

Objection. This interrogatory is overbroad, burdensome and not likely to lead to the discovery of admissible evidence.

Without waiving said objection, this answering defendant may be contacted through her counsel of record.

FORM INTERROGATORY NO. 2.6:

State:

a. the name, **ADDRESS**, and telephone number of your present employer or place of self-employment; and

b. the name, **ADDRESS**, dates of employment, job title, and nature of work for each employer or self-employment you have had from five years before the **INCIDENT** until today.

RESPONSE TO FORM INTERROGATORY NO. 2.6:

a. HOPE Program, A Licensed Clinical Social Worker Professional Corporation, 5403 N. Pershing Ave., Suite 200, Stockton, CA 95207.

b. Answering defendant has held the above employment for more than five years before the INCIDENT.

FORM INTERROGATORY NO. 2.7:

State:

///

a. the name and **ADDRESS** of each school or other academic or vocational institution you have attended, beginning with high school;

b. the dates you attended;

c. the highest grade level you have completed; and

d. the degrees received.

RESPONSE TO FORM INTERROGATORY NO. 2.7:

Justin-Siena High School
4026 Maher St.
Napa, California 94558
Attended: Sept 1975-June 1979

UC Santa Barbara
Santa Barbara, California 93106
Attended: Sept 1979-May 1984

Pepperdine University
24255 Pacific Coast Hwy
Malibu, California 90263
Attended: Sept 1988-April 1993
Received LMFT license May 10, 2007 from Board of Behavioral Sciences

FORM INTERROGATORY NO. 2.8:

Have you ever been convicted of a felony? If so, for each conviction state:

a. the city and state where you were convicted;

b. the date of conviction;

c. the offense; and

d. the court and case number.

RESPONSE TO FORM INTERROGATORY NO. 2.8:

No.

FORM INTERROGATORY NO. 2.9:

Can you speak English with ease? If not, what language and dialect do you normally use?

RESPONSE TO FORM INTERROGATORY NO. 2.9:

Yes.

FORM INTERROGATORY NO. 2.10:

Can you read and write English with ease? If not, what language and dialect do you normally

use?

RESPONSE TO FORM INTERROGATORY NO. 2.10:

Yes.

FORM INTERROGATORY NO. 2.11:

At the time of the **INCIDENT** were you acting as an agent or employee for any **PERSON**? If so, state:

a. the name, **ADDRESS**, and telephone number of that **PERSON**: and

b. a description of your duties.

RESPONSE TO FORM INTERROGATORY NO. 2.11:

Objection. This interrogatory is vague and ambiguous as to the term "INCIDENT" and incorrectly assumes and lacks foundation of involvement in the INCIDENT. This answering defendant further objects that this interrogatory is overbroad, burdensome and not likely to lead to the discovery of admissible evidence. Additionally, this interrogatory contains subparts, or a compound, conjunctive, or disjunctive question in violation of CCP section 2030.060(f).

Without waiving said objection, this answering defendant responds as follows: Not applicable.

FORM INTERROGATORY NO. 2.12:

At the time of the **INCIDENT** did you or any other person have any physical, emotional, or mental disability or condition that may have contributed to the occurrence of the **INCIDENT**? If so, for each person state:

a. the name, **ADDRESS**, and telephone number;

b. the nature of the disability or condition; and

c. the manner in which the disability or condition contributed to the occurrence of the **INCIDENT**.

RESPONSE TO FORM INTERROGATORY NO. 2.12:

Objection. This interrogatory is vague and ambiguous as to the term "INCIDENT" and incorrectly assumes and lacks foundation of involvement in the INCIDENT. This answering defendant further objects that this interrogatory is overbroad, burdensome and not likely to lead to

the discovery of admissible evidence. Additionally, this interrogatory contains subparts, or a compound, conjunctive, or disjunctive question in violation of CCP section 2030.060(f).

Without waiving said objection, this answering defendant responds as follows: The facts are not fully known at this time.

FORM INTERROGATORY NO. 2.13:

Within 24 hours before the **INCIDENT** did you or any person involved in the **INCIDENT** use or take any of the following substances: alcoholic beverage, marijuana, or other drug or medication of any kind (prescription or not)? If so, for each person state

a. the name, **ADDRESS**, and telephone number;

b. the nature or description of each substance;

c. the quantity of each substance used or taken;

d. the date and time of day when each substance was used or taken;

e. the **ADDRESS** where each substance was used or taken;

f. the name, **ADDRESS**, and telephone number of each person who was present when each substance was used or taken; and

g. the name, **ADDRESS**, and telephone number of any **HEALTH CARE PROVIDER** who prescribed or furnished the substance and the condition for which it was prescribed or furnished.

RESPONSE TO FORM INTERROGATORY NO. 2.13:

Objection. This interrogatory is vague and ambiguous as to the term "INCIDENT." This answering defendant further objects that this interrogatory is overbroad, burdensome and not likely to lead to the discovery of admissible evidence. Additionally, this interrogatory contains subparts, or a compound, conjunctive, or disjunctive question in violation of CCP section 2030.060(f).

Without waiving said objection, this answering defendant responds as follows: The facts are not fully known at this time.

FORM INTERROGATORY NO. 4.1:

At the time of the **INCIDENT**, was there in effect any policy of insurance through which you were or might be insured in any manner (for example, primary, pro-rata, or excess liability coverage

or medical expense coverage) for the damages, claims, or actions that have arisen out of the **INCIDENT**? If so, for each policy state:

a. the kind of coverage;

b. the name and **ADDRESS** of the insurance company;

c. the name, **ADDRESS**, and telephone number of each named insured;

d. the policy number;

e. the limits of coverage for each type of coverage contained in the policy;

f. whether any reservation of rights or controversy or coverage dispute exists between you and the insurance company; and

g. the name, **ADDRESS**, and telephone number of the custodian of the policy.

RESPONSE TO FORM INTERROGATORY NO. 4.1:

Yes.

a. Healthcare Professional Liability;

b. Philadelphia Insurance Companies, One Bala Plaza, Suite 100, Bala Cynwyd, PA 19004;

c. Hope Psychotherapy, Inc.; Shannon Smith c/o Soteria Solution LLC, 3170 Crow Canyon Place, Ste, 135, San Ramon, CA 94583;

d. PHCP-67968-15

e. $1 million / $5 million;

f. Yes; and

g. Hope Psychotherapy, Inc.; Shannon Smith c/o Soteria Solution LLC, 3170 Crow Canyon Place, Ste, 135, San Ramon, CA 94583.

a. Commercial General Liability;

b. Philadelphia Insurance Companies, One Bala Plaza, Suite 100, Bala Cynwyd, PA 19004;

c. Hope Program, a Licensed Clinical Social Worker Professional Corporation, c/o Almax Consulting, LLC, 3170 Crow Canyon Place, #135, Hayward, CA 94583-2182

d. PHSD1838240-007

e. $1 million / $1 million

f. No; and

g. Hope Program, a Licensed Clinical Social Worker Professional Corporation, c/o Almax Consulting, LLC, 3170 Crow Canyon Place, #135, Hayward, CA 94583-2182.

FORM INTERROGATORY NO. 4.2:

Are you self-insured under any statute for the damages, claims, or actions that have arisen out of the **INCIDENT**? If so, specify the statute.

RESPONSE TO FORM INTERROGATORY NO. 4.2:

No.

FORM INTERROGATORY NO. 9.1:

Are there any other damages that you attribute to the **INCIDENT**? If so, for each item of damage state:

a. the nature;

b. the date it occurred;

c. the amount; and

d. the name, **ADDRESS**, and telephone number of each **PERSON** to whom an obligation was incurred.

RESPONSE TO FORM INTERROGATORY NO. 9.1:

Objection. The Complaint alleges multiple events, dates, incidents, and circumstances thus the term INCIDENT is vague and ambiguous, compound, and overbroad. Responding Party objects to this interrogatory insofar as it implies that Responding Party was involved in or contributed to the incident. Without waiving said objections, the responding party responds as follows: At this time the responding party does not know of or attribute any damages to the INCIDENT.

FORM INTERROGATORY NO. 9.2:

Do any **DOCUMENTS** support the existence or amount of any item of damages claimed in interrogatory 9.1? If so, describe each document and state the name, **ADDRESS**, and telephone number of the **PERSON** who has each **DOCUMENT**.

RESPONSE TO FORM INTERROGATORY NO. 9.2:

See Response to Form Interrogatory No. 9.1. Not applicable.

FORM INTERROGATORY NO. 12.1:

State the name, **ADDRESS**, and telephone number of each individual:

a. who witnessed the **INCIDENT** or the events occurring immediately before or after the **INCIDENT**;

b. who made any statement at the scene of the **INCIDENT**;

c. who heard any statements made about the **INCIDENT** by any individual at the scene; and

d. who **YOU OR ANYONE ACTING ON YOUR BEHALF** claim has knowledge of the **INCIDENT** (except for expert witnesses covered by Code of Civil Procedure section 2034).

RESPONSE TO FORM INTERROGATORY NO. 12.1:

Objection. Defendant objects to this interrogatory to the extent it seeks to violate the attorney-client and work product privileges and, further, seeks information prepared in anticipation of litigation. *Nacht & Lewis Architects, Inc. v. Superior Court* (1996) 47 Cal App 214, 271.

Subject to and without waiving the above objections, Responding Party responds as follows: Individuals who may have knowledge of the INCIDENT as defined by Propounding Party are Katie Palacios, Bernadette Marie Tassone, Kristine Hansen, Cristina Loree, Dr. Carrie Shinske, and Dr. Drew Kingston, all of whom can be reached through counsel, and CDCR/DAPO employees who participated in the Containment Team Meetings as follows:

Glenn Urea, 612 Carlton Ave., Stockton, CA 95203 (209) 948-7652;

David Arestad, 612 Carlton Ave., Stockton, CA 95203 (209) 948-7652;

Derrick Andrew, 612 Carlton Ave., Stockton, CA 95203 (209) 948-7652;

Gary Noguchi, 612 Carlton Ave., Stockton, CA 95203 (209) 948-7652;

Madri Sherman, 612 Carlton Ave., Stockton, CA 95203 (209) 948-7652.

Discovery is ongoing and Responding Party reserves the right to amend its response upon the discovery of new facts and information.

FORM INTERROGATORY NO. 12.2:

Have **YOU OR ANYONE ACTING ON YOUR BEHALF** interviewed any individual concerning the **INCIDENT**? If so, for each individual state:

a. the name, **ADDRESS**, and telephone number of the individual interviewed;

b. the date of the interview; and

c. the name, **ADDRESS**, and telephone number of the **PERSON** who conducted the interview.

RESPONSE TO FORM INTERROGATORY NO. 12.2:

Responding Party objects to this request as seeking information protected by the attorney client and attorney work product privileges. (See *Payless Drug v. Superior Court* (1976) 54 Cal.App.3d 988, *Travelers Insurance Company v. Superior Court* (1983) 143 Cal.App.3d 436, *Nacht & Lewis, Inc. v. Superior Court* (1996) 47 Cal.App.4th 214; and *Coito v. Superior Court* (2012) 54 Cal.4th 480.) Subject to and without waiving said objections, no.

FORM INTERROGATORY NO. 12.3:

Have **YOU OR ANYONE ACTING ON YOUR BEHALF** obtained a written or recorded statement from any individual concerning the **INCIDENT**? If so, for each statement state:

a. the name, **ADDRESS**, and telephone number of the individual from whom the statement was obtained;

b. the name, **ADDRESS**, and telephone number of the individual who obtained the statement;

c. the date the statement was obtained; and

d. the name, **ADDRESS**, and telephone number of each **PERSON** who has the original statement or a copy.

RESPONSE TO FORM INTERROGATORY NO. 12.3:

Objection. Defendant objects to this interrogatory to the extent it seeks to violate the attorney-client and work product privileges and, further, seeks information prepared in anticipation of litigation. *Nacht & Lewis Architects, Inc. v. Superior Court* (1996) 47 Cal App 214, 271. Defendant further objects to this interrogatory on the ground that it is unintelligible based upon this responding defendant's understanding of the term "INCIDENT" as it relates to this matter. Responding Party cannot determine which alleged event(s) set forth in plaintiffs' Complaint this interrogatory is referring to and invites a meet and confer with plaintiff.

Without waiving objections, Responding Party responds as follows: No. Discovery is continuing.

FORM INTERROGATORY NO. 12.4:

Do **YOU OR ANYONE ACTING ON YOUR BEHALF** know of any photographs, films, or videotapes depicting any place, object, or individual concerning the **INCIDENT** or plaintiff's injuries? If so, state:

a. the number of photographs or feet of film or videotape;

b. the places, objects, or persons photographed, filmed, or videotaped;

c. the date the photographs, films, or videotapes were taken;

d. the name, **ADDRESS**, and telephone number of the individual taking the photographs, films, or videotapes; and

e. the name, **ADDRESS**, and telephone number of each **PERSON** who has the original or a copy of the photographs, films, or videotapes.

RESPONSE TO FORM INTERROGATORY NO. 12.4:

Objection. Defendant objects to this interrogatory to the extent it seeks to violate the attorney-client and work product privileges and, further, seeks information prepared in anticipation of litigation. *Nacht & Lewis Architects, Inc. v. Superior Court* (1996) 47 Cal App 214, 271. Defendant further objects to this interrogatory on the ground that it is unintelligible based upon this responding defendant's understanding of the term "INCIDENT" as it relates to this matter. Responding party cannot determine which alleged event(s) set forth in plaintiffs' Complaint this interrogatory is referring to and invites a meet and confer with plaintiff.

Subject to and without waving the above objections, Responding Party responds as follows: Yes, containment team meetings are video recorded.

FORM INTERROGATORY NO. 12.5:

Do **YOU OR ANYONE ACTING ON YOUR BEHALF** know of any diagram, reproduction, or model of any place or thing (except for items developed by expert witnesses covered by Code of Civil Procedure sections 2034.210–2034.310) concerning the **INCIDENT**? If so, for each item state:

a. the type (i.e., diagram, reproduction, or model);

b. the subject matter; and

c. the name, **ADDRESS**, and telephone number of each **PERSON** who has it.

RESPONSE TO FORM INTERROGATORY NO. 12.5:

Objection. Defendant objects to this interrogatory to the extent it seeks to violate the attorney-client and work product privileges and, further, seeks information prepared in anticipation of litigation. *Nacht & Lewis Architects, Inc. v. Superior Court* (1996) 47 Cal App 214, 271.

Subject to and without waving the above objections, Responding Party responds as follows: No. Discovery is continuing.

FORM INTERROGATORY NO. 12.6:

Was a report made by any **PERSON** concerning the **INCIDENT**? If so, state:

a. the name, title, identification number, and employer of the **PERSON** who made the report;

b. the date and type of report made;

c. the name, **ADDRESS**, and telephone number of **PERSON** for whom the report was made; and

d. the name, **ADDRESS**, and telephone number of each **PERSON** who has the original or a copy of the report.

RESPONSE TO FORM INTERROGATORY NO. 12.6:

Objection. Defendant objects to this interrogatory to the extent it seeks to violate the attorney-client and work product privileges and, further, seeks information prepared in anticipation of litigation. *Nacht & Lewis Architects, Inc. v. Superior Court* (1996) 47 Cal App 214, 271. Defendant further objects to this interrogatory on the ground that it is unintelligible based upon this responding defendant's understanding of the term "INCIDENT" as it relates to this matter. Responding Party cannot determine which alleged event(s) set forth in plaintiffs' Complaint this interrogatory is referring to and invites a meet and confer with plaintiff.

FORM INTERROGATORY NO. 12.7:

Have **YOU OR ANYONE ACTING ON YOUR BEHALF** inspected the scene of the

INCIDENT? If so, for each inspection state:

a. the name, **ADDRESS**, and telephone number of the individual making the inspection (except for expert witnesses covered by Code of Civil Procedure sections 2034.210–2034.310); and

b. the date of the inspection.

RESPONSE TO FORM INTERROGATORY NO. 12.7:

Objection. Defendant objects to this interrogatory to the extent it seeks to violate the attorney-client and work product privileges and, further, seeks information prepared in anticipation of litigation. *Nacht & Lewis Architects, Inc. v. Superior Court* (1996) 47 Cal App 214, 271. Defendant further objects to this interrogatory on the ground that it is unintelligible based upon this responding defendant's understanding of the term "INCIDENT" as it relates to this matter. Responding Party cannot determine which alleged event(s) set forth in plaintiffs' Complaint this interrogatory is referring to and invites a meet and confer with plaintiff.

FORM INTERROGATORY NO. 13.1:

Have **YOU OR ANYONE ACTING ON YOUR BEHALF** conducted surveillance of any individual involved in the **INCIDENT** or any party to this action? If so, for each surveillance state:

a. the name, **ADDRESS**, and telephone number of the individual or party;

b. the time, date, and place of the surveillance;

c. the name, **ADDRESS**, and telephone number of the individual who conducted the surveillance; and

d. the name, **ADDRESS**, and telephone number of each **PERSON** who has the original or a copy of any surveillance photograph, film, or videotape.

RESPONSE TO FORM INTERROGATORY NO. 13.1:

Objection. Defendant objects to this interrogatory to the extent it seeks to violate the attorney-client and work product privileges and, further, seeks information prepared in anticipation of litigation. *Nacht & Lewis Architects, Inc. v. Superior Court* (1996) 47 Cal App 214, 271. Defendant further objects to this interrogatory on the ground that it is unintelligible based upon this responding defendant's understanding of the term "INCIDENT" as it relates to this matter. Responding party

cannot determine which alleged event(s) set forth in plaintiffs' Complaint this interrogatory is referring to and invites a meet and confer with plaintiff.

Without waiving objections, Responding Party responds as follows: No.

FORM INTERROGATORY NO. 13.2:

Has a written report been prepared on the surveillance? If so, for each written report state:

a. the title;

b. the date;

c. the name, **ADDRESS**, and telephone number of the individual who prepared the report; and

d. the name, **ADDRESS**, and telephone number of each **PERSON** who has the original or a copy.

RESPONSE TO FORM INTERROGATORY NO. 13.2:

Not applicable. See response to 13.1, supra.

FORM INTERROGATORY NO. 14.1:

Do **YOU OR ANYONE ACTING ON YOUR BEHALF** contend that any **PERSON** involved in the **INCIDENT** violated any statute, ordinance, or regulation and that the violation was a legal (proximate) cause of the **INCIDENT**? If so, identify the name, **ADDRESS**, and telephone number of each **PERSON** and the statute, ordinance, or regulation that was violated.

RESPONSE TO FORM INTERROGATORY NO. 14.1:

Responding Party objects to this interrogatory on the basis that it seeks information obtained in anticipation of litigation and is protected by the attorney client and attorney work product privileges. (See *Payless Drug v. Superior Court* (1976) 54 Cal.App.3d 988; *Travelers Insurance Company v. Superior Court* (1983) 143 Cal.App.3d 436; *Nacht & Lewis, Inc. v. Superior Court* (1996) 47 Cal.App.4th 214; and *Coito v. Superior Court* (2012) 54 Cal.App.4th 480.) Subject to and without waiving the aforementioned objections, Responding Party responds as follows:

Not to this Responding Party's knowledge.

FORM INTERROGATORY NO. 14.2:

Was any **PERSON** cited or charged with a violation of any statute, ordinance, or regulation

as a result of this **INCIDENT**? If so, for each **PERSON** state:

a. the name, **ADDRESS**, and telephone number of the **PERSON**;

b. the statute, ordinance, or regulation allegedly violated;

c. whether the **PERSON** entered a plea in response to the citation or charge and, if so, the plea entered; and

d. the name and **ADDRESS** of the court or administrative agency, names of the parties, and case number.

RESPONSE TO FORM INTERROGATORY NO. 14.2:

Defendant objects to this interrogatory on the grounds that it is unintelligible based upon this responding defendant's understanding of the term "INCIDENT" as it relates to this matter. Responding Party cannot determine which alleged event(s) set forth in plaintiffs' Complaint. Notwithstanding this objection, the following response is provided. No.

FORM INTERROGATORY NO. 15.1:

Identify each denial of a material allegation and each special or affirmative defense in your pleadings and for each:

a. state all facts upon which you base the denial or special or affirmative defense;

b. state the names, **ADDRESSES**, and telephone numbers of all **PERSONS** who have knowledge of those facts; and

c. identify all **DOCUMENTS** and other tangible things that support your denial or special or affirmative defense, and state the name, **ADDRESS**, and telephone number of the **PERSON** who has each **DOCUMENT**.

RESPONSE TO FORM INTERROGATORY NO. 15.1:

Responding Party objects to the above interrogatory on the grounds that it seeks the disclosure of private information of third parties protected by California case law and the California Constitution. Responding Party objects to this interrogatory on the basis that it seeks information obtained in anticipation of litigation and is protected by the attorney client and attorney work product privileges. (See *Payless Drug v. Superior Court* (1976) 54 Cal.App.3d 988; *Travelers Insurance Company v. Superior Court* (1983) 143 Cal.App.3d 436; *Nacht & Lewis, Inc. v. Superior Court*

(1996) 47 Cal.App.4th 214; and *Coito v. Superior Court* (2012) 54 Cal.App.4th 480.) Responding Party further objects as the above interrogatory is overbroad and is premature as discovery has just commenced.

This interrogatory seeks to have Responding Party's counsel reveal its thought processes, what evidence it believes is important and/or unimportant to Responding Party's defenses, as well as counsel's assessment of the strength and weaknesses of plaintiff's' case. Responding Party does not have the obligation to disclose these thought processes, assessments and evaluations and essentially disclose Responding Party's case and prepare plaintiffs or other parties' cases for them. (See *Sav-On Drugs, Inc. v. Superior Court* (1975) 15Cal.3d 1, 5.)

Subject to and without waiving these objections, this answering Responding Party responds as follows: Responding Party's preliminary allegations, affirmative defenses and denials were pled at the outset of this case before Responding Party began its investigation of the matter. Responding Party's allegations, responsive pleadings and affirmative defenses were made in order to avoid waiver. Responding Party's investigation and discovery into this matter are incomplete. Consequently, it is impossible at this time to state all facts upon which this Responding Party bases its preliminary allegations, special or affirmative defenses and denials. Further, the documents and identities of persons with knowledge of facts supporting this Responding Party's denials and affirmative defenses are not completely known at this time. Additional investigation and discovery are necessary before all of the referenced facts, documents, and persons can be fully ascertained and provided. At this time, this Responding Party does not have sufficient information and/or documentation and/or tangible things in its possession to fully and completely respond to this interrogatory.

FORM INTERROGATORY NO. 17.1:

Is your response to each request for admission served with these interrogatories an unqualified admission? If not, for each response that is not an unqualified admission:

a. state the number of the request;

b. state all facts upon which you base your response;

c. state the names, **ADDRESSES**, and telephone numbers of all **PERSONS** who have

knowledge of the facts; and

d. identify all **DOCUMENTS** and other tangible things that support your contention, and state the name, **ADDRESS**, and telephone number of the **PERSON** who has each **DOCUMENT** or thing.

RESPONSE TO FORM INTERROGATORY NO. 17.1:

a. Request for Admission No. 2.

b. At all relevant times I did not have personal authority to recommend, withhold, or veto a treatment-completion determination for parolee participants at the STOCKTON FACILITY.

c. Katie Palacios, available through counsel.

d. Not applicable.

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a. Request for Admission No. 5.

b. During the RELEVANT PERIOD, I recommended a treatment-completion determination for parolee participants at the STOCKTON FACILITY prior to that parolee's discharge from parole.

c. Katie Palacios, available through counsel.

d. Responding Party objects to this interrogatory on the grounds that it seeks information protected by the constitutional right to privacy under Article I, section 1 of the California Constitution, including confidential, sensitive, and private information belonging to non-parties. *See Younger v. Berkeley City Council* (1975) 45 Cal.App.3d 825, 832. The interrogatory is not narrowly tailored, is overbroad as to time, scope, and persons covered, and seeks private information that is not directly relevant to the claims or defenses in this action. Plaintiff has not demonstrated a compelling need for disclosure sufficient to outweigh the affected privacy interests. Responding Party further objects that any disclosure of such information, if ordered, should be limited to information directly relevant to the claims and defenses, redacted as appropriate, subject to notice to affected persons if required, and governed by an appropriate protective order.

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a. Request for Admission No. 7.

b. To my knowledge, at all relevant times during the RELEVANT PERIOD HOPE did

not have a policy to retain parolee participants in treatment for the entire duration of parole.

c. Katie Palacios, Kristine Hansen and Dr. Drew Kingston, available through counsel.

d. Upon the entry of a protective order, documents produced in response to Plaintiff's Request for Production of Documents, Nos. 1-3.

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a. Request for Admission No. 13.

b. At the August 2025 CTM I did not state that PLAINTIFF's behavior was "abhorrent" or words to that effect.

c. Katie Palacios-available through counsel.

d. Not applicable.

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a. Request for Admission No. 14.

b. At the August 2025 CTM I did not state that PLAINTIFF was "often disrespectful" or words to that effect.

c. Katie Palacios-available through counsel.

d. Not applicable.

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a. Request for Admission No. 15.

b. At the August 2025 CTM I did not characterize that PLAINTIFF's respectful demeanor at that meeting as an "acting job" or words to that effect.

c. Katie Palacios-available through counsel.

d. Not applicable.

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a. Request for Admission No. 17.

b. I did not state, in substance, on or about August 2025, in a HOPE group session at the STOCKTON FACILITY that was video-recorded, that HOPE "routinely losses client homework packets" or words to that effect.

c. Katie Palacios-available through counsel.

d. Not applicable.

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a. Request for Admission No. 18.

b. To my knowledge, my compensation is not tied to client census, retention, sessions

delivered, or site-level revenue at the STOCKTON FACILITY.

c. Katie Palacios-available through counsel.

d. Not applicable.

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a. Request for Admission No. 19.

b. HOPE and its clinicians have an incentive to avoid overtreatment of sex offenders.

c. Katie Palacios-available through counsel.

d. Not applicable.

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a. Request for Admission No. 20.

b. Responding Party did not become "aware of DWYER" on or before December 31, 2023.

c. Katie Palacios-available through counsel.

d. Not applicable.

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a. Request for Admission No. 21.

b. Responding Party did not become "aware of DWYER".

c. Katie Palacios-available through counsel.

d. Not applicable.

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a. Request for Admission No. 22.

b. Responding Party did not become "aware of the Aprile 17, 2025 amendments to CCR section 3574 on or before December 31, 2025."

c. Katie Palacios-available through counsel.

d. Not applicable.

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a. Request for Admission No. 23.

b. Responding Party continually modifies their clinical practice and/or treatment completion recommendations for parolee participants based on new research, new knowledge, experience, unique needs for each client, new client behaviors, etc. Client treatment is an individualized process.

c. Katie Palacios-available through counsel.

d. Not applicable.

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a. Request for Admission No. 24.

b. Responding Party did not instruct or otherwise communicate to a HOPE clinician under her supervision that no parolee participant should be deemed to have completed treatment prior to parole discharge.

c. Katie Palacios-available through counsel.

d. Not applicable.

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a. Request for Admission No. 25.

b. Responding Party has no knowledge of a HOPE clinician under my supervision stating to PLAINTIFF, in substance, that no homework completed by PLAINTIFF had been found in HOPE's records.

c. Katie Palacios-available through counsel.

d. Not applicable.

Request for Admission No. 20.

b. Responding Party did not become "aware of DWYER" on or before December 31, 2023.

c. Katie Palacios-available through counsel.

d. Not applicable.

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a. Request for Admission No. 26

b. Responding Party has no knowledge of PLAINTIFF's Class A Commercial Drvier's License (CDL).

c. Katie Palacios-available through counsel.

d. Not applicable.

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a. Request for Admission No. 27.

b. Responding Party was not aware on December 31, 2022 that PLAINTIFF was working as a CDL driver in commercial trucking.

c. Katie Palacios-available through counsel.

d. Not applicable.

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a. Request for Admission No. 28.

b. Responding Party was not aware of PLAINTIFF's CDL employment.

c. Katie Palacios-available through counsel.

d. Not applicable.

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a. Request for Admission No. 30.

b. Responding Party was not aware that CDCR/DAPO relied upon HOPE's treatment-status reports in making decisions about Plaintiff's parole conditions, GPS monitoring, curfew, and discharge. Such parole conditions are the purview of CDCR.

c. Katie Palacios-available through counsel.

d. Not applicable.

Dated: June 15, 2026

SIMS, LAWRENCE & BROGHAMMER

By: Cynthia G. Lawrence
CYNTHIA G. LAWRENCE
BRYAN L. MALONE
BLAZE VAN DINE
Attorneys for Defendants,
KATIE PALACIOS and
HOPE PROGRAM

VERIFICATION

I, KATIE PALACIOS, state and declare:

I am a defendant in the above-entitled matter, and I am authorized to make this verification on my behalf.

I have read the foregoing DEFENDANT KATIE PALACIOS' RESPONSES TO PLAINTIFF'S FORM INTERROGATORIES, SET ONE and know the contents thereof. I am informed and believe the matters stated therein are true and, on that ground, I allege the matters stated therein are true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed at Stockton, California on June 15, 2026.

Katie Palacios

KATIE PALACIOS

PROOF OF SERVICE

I, Kim Schmitt, certify and declare as follows:

I am over the age of 18 years, and not a party to this action. My business address is 1478 Stone Point Drive, Suite 450, Roseville, CA 95661. My business email is: kschmitt@sims-law.net. I am employed in the County of Placer where this service occurs.

On the date set forth below, following ordinary business practice, I served a true copy of the foregoing document(s) described as:

DEFENDANT KATIE PALACIOS' RESPONSES TO PLAINTIFF'S FIRST SET OF FORM INTERROGATORIES

☐ (BY MAIL) I am readily familiar with my employer's normal business practice for collection and processing of correspondence for mailing with the U.S. Postal Service. Correspondence so collected and processed is deposited with the U.S. Postal Service that same day in the ordinary course of business. I placed for deposit in the United States Postal Service in a sealed envelope, with postage fully prepaid, to the addressee(s) below.

☐ (BY PERSONAL SERVICE) I personally delivered the above document(s) by hand between 9:00 a.m. and 5:00 p.m. to the office of the addressee(s) below.

☐ (BY OVERNIGHT DELIVERY) I deposited in a box or other facility regularly maintained by Federal Express an express service carrier, or delivered to a courier or driver authorized by said express service carrier to receive such envelope(s) to be delivered by overnight delivery, with delivery fees paid or provided for, addressed to the person(s) on whom it is to be served below.

☒ (BY ELECTRONIC SERVICE) I transmitted via electronic service through electronic mail to the offices of the addressee(s) below as stated on the attached service list on this date before 5:00 p.m.

SEE ATTACHED SERVICE LIST

☒ (State) I certify and declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on: June 15, 2026

Kim Schmitt

SERVICE LIST

Brendan Ngehsi Newanforbi Plaintiff, in Pro Per 1455 Cat Tail Drive Stockton, CA 95204 (209) 801-4442 E: bnn.cdl@gmail.com	**PLAINTIFF, IN PER**